

#	Case Name	Tentative
		Similarly, in the 4th COA, Plaintiff seeks an order from this court requiring the HOA to provide Plaintiffs with the opportunity to inspect the records of the HOA. The FAC pleads a claim for injunctive relief, requiring an ADR certificate. (See Civ. Code § 5930). The demurrer is SUSTAINED as to the 3rd and 4th COAs. The court disagrees with Defendant HOA's analysis that Civ. Code § 5930 requires an ADR certificate for the 1st and 2nd COAs. It does not apply to an assessment dispute. (Civ. Code § 5930, subd. (d).) Section 5930 states without qualification or reference to Section 5658 that the prelitigation ADR requirement does not apply to an assessment dispute. Moreover, Section 5658 states that the owner "may" pursue dispute resolution, but does not require it even for small claims actions. However, Defendant HOA is correct that the Plaintiffs' claims for wrongful assessment and negligence do not exist as standalone claims. Assessment disputes are governed by the Davis-Stirling Act or brought as breach of contract or breach of governing documents. (Civ. Code § 5658.) Plaintiffs cannot circumvent the statutory scheme by asserting causes of action that seek tort damages without any legal basis. In opposition, Plaintiffs do not dispute this argument. Accordingly, the demurrer to the first and second causes of action is SUSTAINED for failure to state a cause of action. Plaintiffs have 30 days leave to amend. The case management conference is continued to March 15, 2027 at 9:00 a.m. in Department C28. Defendant HOA shall give notice of this ruling.
52.	Slater v. Walt Disney Parks and Resorts, US, Inc. 2025-01500476	Defendant Luke Stedman's demurrer to Terri Jo Slater's fourth cause of action for intentional infliction of emotional distress ("IIED") and 5th cause of action for negligent infliction of emotional distress ("NIED") is SUSTAINED with ten days leave to amend. Analysis The Fair Employment and Housing Act (FEHA), codified at Cal. Gov't Code § 12900 et seq., prohibits age discrimination in employment. However, the legislature did not intend to place individual supervisory employees at risk of personal liability

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		for personnel management decisions later considered to be discriminatory. <i>Janken v. GM Hughes Electronics</i> (1996) 46 Cal.App.4th 55. In <i>Janken</i>, the court held that FEHA places individual supervisory employees at risk of personal liability for personal conduct constituting harassment, but not for personnel management decisions. The court further held that simple pleading of personnel management activity is insufficient to support a claim for IIED. This means that a supervisor who makes age-based decisions about hiring, firing, promotions, or other terms of employment cannot be held personally liable for IIED merely because those decisions are alleged to be discriminatory. 4th cause of action for IIED Age-based insults alone, such as a supervisor's insulting remarks regarding an employee's purported age and senility, do not rise to the level of outrageous conduct necessary to sustain an IIED claim. <i>Yurick v. Superior Court</i> (1989) 209 Cal.App.3d 1116. A plaintiff may pursue an IIED claim in the employment context where the conduct at issue violates FEHA and also satisfies the elements of the IIED claim. <i>Cornell v. Berkeley Tennis Club</i> (2017)) 18 Cal.App.5th 908. The conduct must be extreme and outrageous — beyond the bounds of human decency — and must not merely restate a discrimination or retaliation claim under a different label. <i>Light v. Department of Parks & Recreation</i> (2017) 14 Cal.App.5th 75. There are no specific allegations in the complaint that show outrageous conduct. There is a conclusory allegation in paragraph 43 that states: "As a proximate result of defendants' extreme and outrageous conduct, plaintiff has suffered and continues to suffer humiliation, emotional distress, and mental and physical pain and anguish, all to her damage in a sum according to proof." But plaintiff incorporates the allegations in paragraphs 14 to 16 which essentially allege Stedman made derogatory comments about her age, questioned plaintiff when she was going to retire, regularly excluded her from interactions with other employees, gave her the "cold shoulder," tried to "ice" her out of day-to-day interactions, and ultimately replaced her with younger employees after her termination. However, according to the authority cited above, the allegations are insufficient to support the IIED claim. Based on the above, the demurrer to the 4th cause of action is SUSTAINED with leave to amend.

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		5th cause of action for NIED Stedman contend this cause of action fails because it is not an independent tort and pleads no duty owed by Stedman. In opposition, Slater argues the tort of negligent infliction of emotional distress is premised on mental harm resulting from a defendant's failure to exercise due care toward the plaintiff. She further contends employers and supervisors owe a duty to their employees to "take all reasonable steps necessary to prevent discrimination and harassment from occurring", which plaintiff alleged was in full force and effect. Gov. Code, § 12940 (k); Comp. ¶ 29. Slater alleged that Stedman worked for the Disney defendants, was Slater's supervisor, and personally directed his conduct at plaintiff. Comp. ¶¶ 2, 6, 15. Slater also alleged that Defendants "were aware, or should have been aware, that discriminating against [P]laintiff would cause emotional distress." Comp. ¶ 46, 48. As Slater's supervisor, she alleges that Stedman directed age-based discrimination and hostile treatment at Plaintiff in conflict of his duty to exercise due care not to cause foreseeable emotional harm, and that Plaintiff has alleged that he breached that duty and proximately caused her severe emotional distress. Comp. ¶¶ 46-50. In <i>Smith v. International Brotherhood of Electrical Workers</i> (2003) 109 Cal.App.4th 1637, the court held that a union business manager who was not liable on the former employee's discrimination claims could not be held personally liable on the employee's claims of intentional and negligent infliction of emotional distress, which arose from the discrimination claims. This principle comes from the rule established in <i>Janken</i> that supervisors are not personally liable for discriminatory personnel management decisions. <i>Janken</i>, supra. Since the allegations here—age-related comments, exclusion, cold shoulder treatment, and replacement with younger employees—constitute discriminatory personnel management activity insufficient to support an IIED claim, they likewise cannot support an NIED claim against Stedman. Moreover, NIED claims in the employment context face additional hurdles. Such claims are generally barred by workers' compensation exclusivity unless the conduct violates fundamental public policy and exceeds the normal risks of the employment relationship. <i>Livitsanos v. Superior Court</i> (1992) 2 Cal.4th 744. Even where NIED claims based on FEHA violations might theoretically survive workers' compensation exclusivity, the

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		conduct must still satisfy the elements of negligent infliction of emotional distress, which typically requires either physical injury or conduct that is particularly likely to cause severe emotional distress. <i>Jones v. Department of Corrections & Rehabilitation</i> (2007) 152 Cal.App.4th 1367. The allegations described—discriminatory comments and exclusionary workplace behavior—do not meet this threshold and remain within the category of personnel management disputes that cannot support personal liability against a supervisor for emotional distress, whether characterized as intentional or negligent. Based on the above, the demurrer to the 5th cause of action is SUSTAINED with leave to amend. The amended complaint (if any) shall be filed within 10 days of this order. The case management conference is continued to March 15, 2027 at 9:00 a.m. in this department. Moving defendant shall give notice of this ruling.
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54.	Applegate v. Everts 2025-01507318	Defendant Brockton Everts' Motion to Set Aside/Vacate the Default is GRANTED. Defendant seeks relief from default pursuant to CCP § 473(b). Section 473(b) provides, in pertinent part: The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken. ... No affidavit or declaration of merits shall be required of the moving party. The law favors a trial on the merits, and doubts in applying Code of Civil Procedure section 473 are resolved in favor of the party seeking relief from default. (<i>Iott v. Franklin</i> (1988) 206 Cal. App. 3d 521, 526.) If a party moves promptly for default relief, or if the granting of the relief from default will